

claude-windows / 068560d3-1ca2-4387-981a-d2d6bca55414

Metadata

```
- Source: `claude-windows`  
- Kind: `claude`  
- Source file: `C:\Users\avidu\.claude\projects\C--Users-avidu-Projects-badminton-highlight-indexer\068560d3-1ca2-4387-981a-d2d6bca55414\subagents\workflows\wf_47057438-9c9\agent-a466d9415a36b1f58.jsonl`  
- SHA-256: `34d17fee09cc7a2f6882d482b4df3373b565ff00b5c01198cb2b786ba8df1bc9`  
- Source modified: `2026-06-16T02:47:42+00:00`  
- Imported at: `2026-07-05T16:48:28+00:00`  
- project: `wf_47057438-9c9`  
- session_id: `068560d3-1ca2-4387-981a-d2d6bca55414`
```

Transcript

1. user (2026-06-16T02:44:47.463Z)

RESEARCH QUESTION: Is algorithmically-DERIVED structured data ? per-frame shuttle (x,y) coordinates, rally start/end timestamps, audio-onset feature values ? extracted from a copyrighted sports VIDEO itself protected by copyright, or is it uncopyrightable facts/data, or a 'derivative work'? Cover: the idea/expression dichotomy; Feist Publications v. Rural Telephone (facts not copyrightable; sweat-of-the-brow rejected); originality requirement in selection/arrangement; whether mechanical extraction yields a 'derivative work' under 17 USC 101; intermediate / non-expressive copying and fair use (Google v. Oracle, Authors Guild v. Google, Sega v. Accolade). Bottom line: does the derived NUMERIC data inherit the video's copyright?

METHOD: Use WebSearch and WebFetch to find and cite AUTHORITATIVE sources (statutes, case law, official regulator guidance, reputable legal commentary). Load them first if needed via ToolSearch with query 'select:WebSearch,WebFetch'. Cite real URLs. If you cannot fetch a source, mark that claim's confidence 'low' and set webUsed=false. Do NOT fabricate citations ? an honest 'unverified' beats an invented case name or URL.

2. assistant (2026-06-16T02:44:50.066Z)

I'll research this question on copyright protection of algorithmically-derived structured data from video. Let me load the web tools first.

3. assistant (2026-06-16T02:44:53.601Z)

I have the web tools loaded. Let me begin researching this question with parallel searches on the key legal doctrines.

4. user (2026-06-16T02:44:59.225Z)

Web search results for query: "17 USC 101 derivative work definition recast transformed adapted"

Links: [{"title": "Definition: derivative work from 17 USC § 101 | LII / Legal Information Institute", "url": "https://www.law.cornell.edu/definitions/uscode.php?width=840&height=800&iframe=true&def_id=17-USC-1602536950-364936160&term_occur=44&term_src="}, {"title": "17 USC 101: Definitions", "url": "https://uscode.house.gov/view.xhtml?req=granuleid%3AUSC-prelim-title17-section101&num=0&edition=prelim"}, {"title": "17 U.S. Code § 101 - Definitions | U.S. Code | US Law | LII / Legal Information Institute", "url": "https://www.law.cornell.edu/uscode/text/17/101"}, {"title": "What Are Derivative Works Under Copyright Law?", "url": "https://www.legalzoom.com/articles/what-are-derivative-works-under-copyright-law"}, {"title": "17.15 Copyright Interests? Derivative Work (17 U.S.C. §§ 101, 106(2)) | Model Jury Instructions", "url": "https://www.ce9.uscourts.gov/jury-instructions/node/271"}, {"title": "Derivative Works Under U.S. Copyright Law", "url": "https://www.nolo.com/legal-encyclopedia/derivative-works-under-u-s-copyright-law.html"}, {"title": "Page 3 TITLE 17? COPYRIGHTS § 101", "url": "https://www.govinfo.gov/content/pkg/USCODE-2011-title17/pdf/USCODE-2011-title17-chap1-sec101.pdf"}, {"title": "Chapter 1 ? Subject"}]

```
Matter and Scope of Copyright", "url": "https://uscode.house.gov/view.xhtml?path=%2Fprelim%40title17%2Fchapter1&edition=prelim"}, {"title": "Chapter 1 - Circular 92 | U.S. Copyright Office", "url": "https://www.copyright.gov/title17/92chap1.html"}, {"title": "Derivative work", "url": "https://en.wikipedia.org/wiki/Derivative_work"}]
```

Based on the search results, here's the definition of "derivative work" from 17 USC § 101:

A "derivative work" is a work based upon one or more preexisting works, such as a translation, musical arrangement, dramatization, fictionalization, motion picture version, sound recording, art reproduction, abridgment, condensation, or any other form in which a work may be recast, transformed, or adapted.

Additionally, a work consisting of editorial revisions, annotations, elaborations, or other modifications which, as a whole, represent an original work of authorship, is a "derivative work".

The statute specifically uses the three key terms you searched for? "recast," "transformed," and "adapted"? to describe the types of modifications that can create a derivative work from a preexisting original work.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

5. user (2026-06-16T02:45:01.580Z)

Web search results for query: "Feist Publications v. Rural Telephone facts not copyrightable sweat of the brow originality"

```
Links: [{"title": "Feist Publications v. Rural Telephone Service - Wikisource, the free online library", "url": "https://en.wikisource.org/wiki/Feist_Publications_v._Rural_Telephone_Service"}, {"title": "Feist Publications, Inc. v. Rural Telephone Service Company, Inc. | Oyez", "url": "https://www.oyez.org/cases/1990/89-1909"}, {"title": "Feist Publications, Inc. v. Rural Telephone Service Co., 499 U.S. 340 (1991)", "url": "https://ocw.mit.edu/courses/6-912-introduction-to-copyright-law-january-iap-2006/286e15d6ab1daa9dc77bbd4c58279919_feist.pdf"}, {"title": "A SELECTIVE VIEW OF HISTORY: FEIST PUBLICATIONS, INC. V. RURAL TELEPHONE", "url": "https://bclawreview.bc.edu/articles/1394/files/63c0fcafd7b99.pdf"}, {"title": "Feist Publications, Inc. v. Rural Tel. Serv. Co. | 499 U.S. 340 (1991) | Justia U.S. Supreme Court Center", "url": "https://supreme.justia.com/cases/federal/us/499/340/"}, {"title": "Feist v. Rural Telephone Service Co | Case Brief for Law Students | Casebriefs", "url": "https://www.casebriefs.com/blog/law/property/property-law-keyed-to-singer/intellectual-property/feist-v-rural-telephone-service-co/"}, {"title": "non copyrightable", "url": "https://cyber.harvard.edu/property00/alternatives/non-copyrightable.html"}, {"title": "feist publications inc v rural telephone service co", "url": "https://fairuse.stanford.edu/case/feist-publications-inc-v-rural-telephone-service-co"}, {"title": "Feist Publications, Inc. v. Rural Tel. Serv. Co., 499 U.S. 340 (1991)", "url": "https://supreme.justia.com/cases/federal/us/499/340/case.html"}]
```

Based on the search results, here are the key facts from Feist Publications v. Rural Telephone Service:

Case Overview

Feist Publications v. Rural Telephone Service Company involved Rural Telephone Service Company, a certified public utility providing telephone service to several communities in Kansas. When Rural refused to license its white pages listings to Feist for a directory covering 11 different telephone service areas, Feist extracted the listings it needed from Rural's directory without Rural's consent.

Key Holdings

****Facts Are Not Copyrightable:****

Since facts do not owe their origin to an act of authorship, they are not original, and thus are not copyrightable. The Court held that the names, towns, and telephone numbers copied by Feist

were not original to Rural and therefore were not protected by the copyright in Rural's combined white and yellow pages directory.

****Originality Required:****

Article I, Section 8 of the Constitution mandates originality as a prerequisite for copyright protection, and the constitutional requirement necessitates independent creation plus a modicum of creativity.

****Rejection of "Sweat of the Brow" Test:****

The Supreme Court held that originality, not "sweat of the brow," is the touchstone of copyright protection in directories and other fact-based works. Copyright rewards originality, not effort.

****Compilations May Have Some Protection:****

Although a compilation of facts may possess the requisite originality because the author typically chooses which facts to include, in what order to place them, and how to arrange the data so that readers may use them effectively, copyright protection extends only to those components of the work that are original to the author, not to the facts themselves.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

6. assistant (2026-06-16T02:45:04.463Z)

Let me fetch the authoritative Feist opinion and the statute, and search for the fair use / intermediate copying cases.

7. user (2026-06-16T02:45:07.175Z)

The server returned HTTP 403 Forbidden.

The response body was not retrieved. If this URL requires authentication, use an authenticated tool (e.g. `gh` for GitHub, or an MCP-provided fetch tool) instead of WebFetch.

8. user (2026-06-16T02:45:15.542Z)

Web search results for query: "Google v. Oracle Supreme Court fair use transformative copying functional code"

Links: [{"title":"Google LLC v. Oracle American, Inc. ? Case Brief Summary ? Facts, Issue, Holding & Reasoning ? Studicata","url":"https://www.studicata.com/case-briefs/case/google-llc-v-oracle-am-inc"}, {"title":"Google V. Oracle: A Copyrightability Decision Masquerading as Fair Use | Hudson Institute","url":"https://www.hudson.org/technology/google-v-oracle-a-copyrightability-decision-masquerading-as-fair-use"}, {"title":"United States Supreme Court Rules for Google in a Landmark Fair Use Decision | Mintz","url":"https://www.mintz.com/insights-center/viewpoints/2231/2021-04-06-united-states-supreme-court-rules-google-landmark-fair"}, {"title":"The Google v. Oracle Supreme Court Case Explained - LegalClarity","url":"https://legalclarity.org/the-google-v-oracle-supreme-court-case-explained/"}, {"title":"Google v. Oracle: Supreme Court Rules for Google in Landmark Software Copyright Case | Congress.gov | Library of Congress","url":"https://www.congress.gov/crs-product/LSB10597"}, {"title":"SCOTUS: Code copying is fair use, as long as it's 'transformative' | CIO Dive","url":"https://www.ciodive.com/news/google-oracle-supreme-court-open-source-code/597818/"}, {"title":"Landmark Fair Use Victory at the Supreme Court in Software Case - Insights - Proskauer Rose LLP","url":"https://www.proskauer.com/blog/landmark-fair-use-victory-the-supreme-court-in-software-case"}, {"title":"Google LLC v. Oracle Am., Inc. 141 S. Ct. 1163 (2021) Year 2021 Court","url":"https://www.copyright.gov/fair-use/summaries/google-llc-oracle-am-inc-2021.pdf"}]

Based on the search results, here's an overview of the Google v. Oracle Supreme Court case regarding fair use, transformative copying, and functional code:

Case Overview

On April 5, 2021, the United States Supreme Court issued a significant fair use decision,

holding six to two that Google's copying of 11,500 lines of code from Oracle's Java SE API in Google's Android platform was a fair and transformative use.

The Dispute

Oracle America owned a copyright in the Java SE platform, a computer program used widely in the programming community. Google, without obtaining permission, copied approximately 11,500 lines of Java SE's declaring code to develop its Android platform for mobile devices, intending to attract Java-trained programmers.

The Supreme Court's Fair Use Analysis

****Transformative Use:**** The Court found Google's use transformative because it created a new platform for a different computing environment, thereby promoting creativity and innovation. More specifically, the Court found Google's use to be "transformative" because it took the Java API, designed for desktop computers, and repurposed it for a new environment: the Android mobile platform.

****Functional Code Nature:**** The U.S. Supreme Court reasoned that the nature of the declaring code, being functional and user-centered, placed it further from the core of copyright protection. The opinion found that declaring code, as part of a user interface, is "inherently bound together with uncopyrightable ideas" such as "general task division and organization," and is "further than are most computer programs from the core of copyright."

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

9. assistant (2026-06-16T02:45:18.627Z)

Justia returned 403. Let me try alternative authoritative sources for Feist (LII Cornell and Wikisource/Oyez), and search for the remaining cases.

10. user (2026-06-16T02:45:25.691Z)

Statutory Definitions from 17 U.S.C. § 101

****Derivative Work:****

"A work based upon one or more preexisting works, such as a translation, musical arrangement, dramatization, fictionalization, motion picture version, sound recording, art reproduction, abridgment, condensation, or any other form in which a work may be recast, transformed, or adapted."

****Compilation:****

"A work formed by the collection and assembling of preexisting materials or of data that are selected, coordinated, or arranged in such a way that the resulting work as a whole constitutes an original work of authorship."

****Audiovisual Works:****

"Works that consist of a series of related images which are intrinsically intended to be shown by the use of machines or devices such as projectors, viewers, or electronic equipment, together with accompanying sounds, if any, regardless of the nature of the material objects."

****Motion Pictures:****

"Audiovisual works consisting of a series of related images which, when shown in succession, impart an impression of motion, together with accompanying sounds, if any."

11. user (2026-06-16T02:45:29.445Z)

Web search results for query: "Authors Guild v. Google non-expressive copying snippets fair use transformative Second Circuit"

Links: [{"title": "Authors Guild v. Google, Inc., No. 13-4829 (2d Cir. 2015) ::

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Justia", "url": "https://law.justia.com/cases/federal/appellate-  
courts/ca2/13-4829/13-4829-2015-10-16.html"}, {"title": "Second Circuit Affirms Fair Use in Google  
Books Case ? Association of Research Libraries", "url": "https://www.arl.org/blog/second-circuit-  
affirms-fair-use-in-google-books-case/"}, {"title": "Authors Guild v. Google, Inc. (Authors Guild  
v. Google, Inc., 804 F.3d 202, 116 U.S.P.Q.2d 1423 (2nd Cir. 2015)) - vLex United States -  
vLex", "url": "https://case-law.vlex.com/vid/authors-guild-v-google-894129886"}, {"title": "The  
Authors Guild v. Google, Inc. | Loeb & Loeb  
LLP", "url": "https://www.loeb.com/en/insights/publications/2015/10/the-authors-guild-v-google-  
inc"}, {"title": "Authors Guild v. Google, Inc. ? Case Brief Summary ? Facts, Issue, Holding &  
Reasoning ? Studicata", "url": "https://www.studicata.com/case-briefs/case/authors-guild-v-google-  
inc"}, {"title": "Authors Guild v. Google, Inc. -  
SCOTUSblog", "url": "https://www.scotusblog.com/cases/case-files/authors-guild-v-google-  
inc/"}, {"title": "Fair Use Week 2023: Looking Back at Google Books Eight Years  
Later", "url": "https://www.authorsalliance.org/2023/02/24/fair-use-week-2023-looking-back-at-  
google-books-eight-years-later/"}, {"title": "In Appeal Filing, Google Defends  
Snippets", "url": "https://tagteam.harvard.edu/hub_feeds/928/feed_items/1238336"}]
```

Based on the search results, here's what the Authors Guild v. Google case established regarding non-expressive copying, snippets, fair use, and transformative use in the Second Circuit:

Fair Use and Transformative Purpose

On October 16, 2015, the U.S. Court of Appeals for the Second Circuit unanimously affirmed that the copying of books and display of snippets is transformative and a fair use. Google's making of a digital copy to provide a search function is a transformative use, which augments public knowledge by making available information about Plaintiffs' books without providing the public with a substantial substitute for matter protected by the Plaintiffs' copyright interests in the original works.

Non-Expressive Copying for Search

The Second Circuit addressed the key issue of whether verbatim copying could be transformative when used for non-expressive purposes. The Second Circuit held that verbatim copying of works for a different, non-expressive purpose can be a transformative fair use. This was significant because Google had copied entire books, but the purpose was limited to enabling searchability rather than displaying the expressive content.

Snippets and Market Impact

The purpose of the copying is highly transformative, the public display of text is limited, and the revelations do not provide a significant market substitute for the protected aspects of the originals. The Second Circuit found that copying anything less than the entirety of the copyrighted book would defeat the purpose of creating a full-text searchable index, which is a highly transformative use.

Commercial Use

Google's commercial nature and profit motivation do not justify denial of fair use.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

12. user (2026-06-16T02:45:29.655Z)

Web search results for query: "Sega v. Accolade intermediate copying disassembly fair use non-protectable functional elements"

Links: [{"title": "Sega Enterprises, Ltd. v. Accolade, Inc., 977 F.2d 1510 (9th Cir. 1992) :: Justia", "url": "https://law.justia.com/cases/federal/appellate-courts/F2/977/1510/305345/"}, {"title": "Sega Enterprises Ltd. v. Accolade, Inc., 977 F. 2d 1510 (BitLaw)", "url": "https://www.bitlaw.com/source/cases/copyright/Sega-Accolade.html"}, {"title": "Sega Enterprises Ltd. v. Accolade, Inc., 785 F. Supp. 1392 (N.D. Cal.

```
1992) :: Justia","url":"https://law.justia.com/cases/federal/district-
courts/FSupp/785/1392/2144879/"},"title":"977 F.2d 1510","url":"https://law.resource.org/pub/us
/case/reporter/F2/977/977.F2d.1510.92-15655.html"},"title":"Sega Enterprises Ltd. v. Accolade,
Inc. | Case Brief for Law Students |
Casebriefs","url":"https://www.casebriefs.com/blog/law/intellectual-property-law/intellectual-
property-keyed-to-merges/copyright-law/sega-enterprises-ltd-v-accolade-inc/"},"title":"Sega
Enterprises Limited v. Accolade, Inc. ? Case Brief Summary ? Facts, Issue, Holding & Reasoning ?
Studicata","url":"https://www.studicata.com/case-briefs/case/sega-enterprises-ltd-v-accolade-
inc"},"title":"Sega Enterprises Ltd. v. Accolade, Inc. ? Case Brief","url":"https://matthewmine
r.name/law/briefs/3L/1st+Semester/LAW+661-
001+%E2%80%93+Intellectual+Property/Sega+Enterprises+Ltd.+v.+Accolade,+Inc."}]
```

Based on the search results, here's an overview of the key aspects of *Sega Enterprises Ltd. v. Accolade, Inc.* (977 F.2d 1510, 9th Cir. 1992):

Intermediate Copying

Accolade maintained that intermediate copying does not infringe the exclusive rights granted to copyright owners in section 106 of the Copyright Act unless the end product of the copying is substantially similar to the copyrighted work.

Disassembly and Fair Use

Accolade argued that disassembly of object code in order to gain an understanding of the ideas and functional concepts embodied in the code is lawful under section 102(b) of the Act, which exempts ideas and functional concepts from copyright protection.

Accolade also contended that disassembly of object code in order to gain an understanding of the ideas and functional concepts embodied in the code is a fair use that is privileged by section 107 of the Act.

Court's Analysis

The Ninth Circuit ultimately upheld Accolade's fair use defense. The court found that the use at issue was an intermediate one only and thus any commercial "exploitation" was indirect or derivative, and that Accolade copied Sega's software solely in order to discover the functional requirements for compatibility with the Genesis console?aspects of Sega's programs that are not protected by copyright.

Key Holding

Disassembly of a copyrighted object code is a fair use of the material if it is the only way to access uncopyrighted elements of the code and there is a legitimate reason for seeking to do so.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

13. assistant (2026-06-16T02:45:39.166Z)

I have strong material on the statute, Feist, Google v. Oracle, Authors Guild, and Sega. Let me get the official Google v. Oracle summary from copyright.gov and the Sega opinion details, plus a source on whether data extracted from copyrighted works (the "non-expressive use" / facts-vs-expression for derived data) is protected ? including the idea/expression dichotomy at 17 USC 102(b).

14. user (2026-06-16T02:45:46.726Z)

I apologize, but I cannot provide a meaningful response to your request. The content you've provided appears to be a corrupted or binary PDF file that doesn't render as readable text in this format.

To properly summarize the Copyright Office's account of Google v. Oracle (141 S. Ct. 1183,

2021), I would need access to:

1. The actual Copyright Office publication or report discussing this case
2. Readable text of the Supreme Court decision itself
3. Official commentary on the ruling's implications

If you'd like me to help analyze this case, please provide:

- A link to the Copyright Office document
- The text pasted directly (rather than PDF binary)
- A specific publication or report title

I'm happy to then summarize the holding on fair use, the transformativeness analysis, and the treatment of functional code once I can access legible source material.

[Binary content (application/pdf, 294KB) also saved to C:\Users\avidu\.claude\projects\C--Users-avidu-Projects-badminton-highlight-indexer\068560d3-1ca2-4387-981a-d2d6bca55414\tool-results\webfetch-1781577942623-im60zr.pdf]

15. user (2026-06-16T02:45:49.558Z)

Web search results for query: "17 USC 102(b) idea procedure process method of operation not copyrightable idea expression dichotomy"

Links: [{"title": "17 USC 102: Subject matter of copyright: In general - BitLaw", "url": "https://www.bitlaw.com/source/17usc/102.html"}, {"title": "17 USC 102: Subject matter of copyright: In general", "url": "https://uscode.house.gov/view.xhtml?req=granuleid%3AUSC-prelim-title17-section102&num=0&edition=prelim"}, {"title": "17 U.S.C. § 102 - U.S. Code Title 17. Copyrights § 102 | FindLaw", "url": "https://codes.findlaw.com/us/title-17-copyrights/17-usc-sect-102/"}, {"title": "What Copyright Does Not Protect | Facilities Services | Washington State University", "url": "https://printing.wsu.edu/copyright/what-copyright-does-not-protect/"}, {"title": "House", "url": "https://uscode.house.gov/view.xhtml?req=(title:17+section:102+edition:prelim)+OR+(granuleid:USC-prelim-title17-section102)&f=treesort&edition=prelim&num=0&jumpTo=true"}, {"title": "Why Copyright Law Excludes Systems and Processes from ...", "url": "https://people.ischool.berkeley.edu/~pam/papers/102_b_%20dr4.pdf"}, {"title": "You are here", "url": "https://www.ce9.uscourts.gov/jury-instructions/node/260"}, {"title": "Model Jury Instructions", "url": "https://www.ce9.uscourts.gov/jury-instructions/print/book/export/html/260"}, {"title": "websites.umass.edu", "url": "https://websites.umass.edu/copyright/copyright-basics/copyrightability"}, {"title": "Stanford CIS", "url": "https://cyberlaw.stanford.edu/blog/2007/08/section-102b-and-negative-categories-copyright-subject-matter/"}]

Based on the search results, here's what I found regarding 17 USC 102(b) and the idea/expression dichotomy:

The Statute

17 USC 102(b) states: "In no case does copyright protection for an original work of authorship extend to any idea, procedure, process, system, method of operation, concept, principle, or discovery, regardless of the form in which it is described, explained, illustrated, or embodied in such work."

Core Principle: Idea vs. Expression Dichotomy

Only the expression of an idea or fact can be copyrighted. The underlying ideas contained in the work, such as procedures, processes, systems, methods of operation, concepts, principles, or discoveries, cannot be copyrighted.

The long-standing doctrine called the "idea/expression dichotomy" is often expressed as "copyright protects the expression of ideas but does not protect the ideas themselves."

Legislative Intent

Section 102(b) is intended, among other things, to make clear that the expression adopted by the programmer is the copyrightable element in a computer program, and that the actual processes or methods embodied in the program are not within the scope of the copyright law.

Scope of Non-Copyrightable Categories

The noncopyrightable elements listed in section 102(b) are "any idea, procedure, process, system, method of operation, concept, principle, or discovery."

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

16. user (2026-06-16T02:45:50.003Z)

Web search results for query: "copyright protection sports statistics game data scores uncopyrightable NBA Motorola facts"

Links: [{"title": "Intellectual Property Battles Over Sports Game Data and Geolocation Technology ? Brooklyn Sports & Entertainment Law Blog", "url": "https://sports-entertainment.brooklaw.edu/sports/intellectual-property-battles-over-sports-game-data-and-geolocation-technology/"}, {"title": "National Basketball Ass'n v. Motorola, Inc. - Wikipedia", "url": "https://en.wikipedia.org/wiki/National_Basketball_Ass'n_v._Motorola,_Inc."}, {"title": "National Basketball Assoc. v. Motorola, Inc. ? Case Brief Summary ? Facts, Issue, Holding & Reasoning ? Studicata", "url": "https://www.studicata.com/case-briefs/case/national-basketball-assoc-v-motorola-inc"}, {"title": "NBA v. STATS | The IT Law Wiki | FANDOM powered by Wikia", "url": "http://itlaw.wikia.com/wiki/NBA_v._STATS"}, {"title": "Revisiting NBA v. Motorola in the Big Data Era", "url": "https://scholars.unh.edu/cgi/viewcontent.cgi?article=1054&context=unhslr"}, {"title": "NBA v. Motorola | The IT Law Wiki | Fandom", "url": "https://itlaw.fandom.com/wiki/NBA_v._Motorola"}, {"title": "NBA v. Motorola and STATS, Inc.: The Second Circuit ...", "url": "https://repository.law.uic.edu/cgi/viewcontent.cgi?article=1232&context=jitpl"}, {"title": "NBA v. Motorola", "url": "https://cyber.harvard.edu/metaschol/fisher/linking/doctrine/nba.html"}, {"title": "National Basketball Ass'n v. Motorola, Inc.", "url": "https://en.wikipedia.org/wiki/National_Basketball_Ass'n_v._Motorola,_Inc."}]

Here are the search results related to copyright protection of sports statistics, game data, scores, and the NBA v. Motorola case:

Key Findings

****The NBA v. Motorola Case (1997)****

This is a United States Court of Appeals for the Second Circuit case in which the National Basketball Association (NBA) purported that Motorola and STATS infringed the NBA's copyright on the broadcast of games and misappropriated the data presented on the SportsTrax pager.

****The Product and Service****

Motorola manufactured and marketed the SportsTrax paging device which uses game information supplied by Sports Team Analysis and Tracking Systems ("STATS"), who compiled its scores and statistics by employing people to listen or watch the games, then enter the scores on the computer which transmits the scores to STATS' on-line service, to be sent out to anyone using a SportsTrax pager.

****Court's Decision on Uncopyrightable Facts****

The Second Circuit held that factual information generated from sporting events does not constitute original works of authorship, and while the broadcasts themselves were protected under copyright law, the facts produced during the game were not copyrightable.

****Significance****

A general understanding exists that athletic events were, and are, uncopyrightable. This landmark case established important precedent regarding the distinction between copyrightable

broadcasts and uncopyrightable factual game data.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

17. assistant (2026-06-16T02:45:53.436Z)

Excellent ? the NBA v. Motorola line is directly on point: facts generated from a sporting event (scores/statistics) are not copyrightable even though the broadcast is. Let me read that PDF I saved for the Google v. Oracle Copyright Office summary, and fetch the Sega opinion and NBA v. Motorola for precise quotes.

18. user (2026-06-16T02:45:55.345Z)

PDF file read: C:\Users\avidu\.claude\projects\C--Users-avidu-Projects-badminton-highlight-indexer\068560d3-1ca2-4387-981a-d2d6bca55414\tool-results\webfetch-1781577942623-im60zr.pdf (294KB)

19. user (2026-06-16T02:46:01.946Z)

National Basketball Ass'n v. Motorola: Copyrightability of Game Facts

****The Court's Holding:****

The Second Circuit (105 F.3d 841, 2d Cir. 1997) determined that the games themselves?and the factual data they generate?are not copyrightable subject matter. The court reasoned that "Sports events are not 'authored' in any common sense of the word."

****Key Distinction:****

While the *broadcasts* of NBA games receive copyright protection (the creative work of directors, cameramen, and editors), the underlying facts and scores do not. The court found that defendants provided "purely factual information which any patron of an NBA game could acquire from the arena without any involvement from the director, cameramen, or others who contribute to the originality of the broadcast."

****The Rationale:****

The court warned against extending copyright to sporting events themselves, noting that doing so would create absurd results?for example, allowing the inventor of the T-formation in football to control all subsequent uses of that formation, ultimately harming the sport's development.

20. assistant (2026-06-16T02:46:06.747Z)

I now have authoritative material on all the requested doctrines. Let me get one more piece ? the Sega v. Accolade holding language on intermediate copying and §102(b) functional elements, and verify the AI-training "non-expressive use" angle which is directly analogous to extracting numeric features from video.

21. user (2026-06-16T02:46:16.318Z)

Sega v. Accolade: Key Holdings, 977 F.2d 1510 (9th Cir. 1992)

Holding 1: Intermediate Copying

The court established that "intermediate copying of computer object code may infringe the exclusive rights granted to the copyright owner in section 106 of the Copyright Act regardless of whether the end product of the copying also infringes those rights."

This represents a departure from arguments that only final products matter for infringement analysis.

Holding 2: Fair Use for Accessing Functional Elements

The court ruled that disassembly constitutes fair use when two conditions are met: (1) the person has a legitimate reason for understanding unprotected elements, and (2) no other means of access exists. The opinion states: "disassembly is as a matter of law a fair use of the copyrighted work" under these circumstances.

This permits reverse engineering when necessary to access ideas and functional concepts excluded from copyright protection.

Holding 3: Functional Requirements Unprotected

The court confirmed that interface specifications and functional requirements for system compatibility are not copyrightable subject matter under 17 U.S.C. § 102(b). The court emphasized that copyright cannot create a "de facto monopoly over the functional aspects" of software.

This principle prevents copyright owners from using the statute to monopolize functional specifications through copyright protection alone.

22. user (2026-06-16T02:46:20.498Z)

Web search results for query: "AI training non-expressive use intermediate copying fair use facts extracted from copyrighted works Thomson Reuters Bartz Anthropic"

Links: [{"title":"Training Data on Trial: AI's First Fair Use Test","url":"https://ipwatchdog.com/2025/10/09/training-data-trial-ai-first-fair-use-test/"},"{"title":"Intermediate Copying and Fair Use: Two Approaches from the Same Bench | Thompson Coburn LLP","url":"https://www.thompsoncoburn.com/insights/intermediate-copying-and-fair-use-two-approaches-from-the-same-bench/"},"{"title":"District Court Rules AI Training Can Be Fair Use in Bartz v. Anthropic | Akin","url":"https://www.akingump.com/en/insights/ai-law-and-regulation-tracker/district-court-rules-ai-training-can-be-fair-use-in-bartz-v-anthropic"},"{"title":"Bartz v. Anthropic and the Purpose Reduction Problem in Fair Use Factor One Training for What? Intermediate Mechanics and Operative Expressive Deployment by Benjamin Hardman :: SSRN","url":"https://papers.ssrn.com/sol3/papers.cfm?abstract_id=6156407"},"{"title":"Bartz v. Anthropic and the Misframing of Fair Use Factor One Revealed Purpose, Transformative Character, and Expressive Competition in AI Training by Benjamin Hardman :: SSRN","url":"https://ssrn.com/abstract=6169529"},"{"title":"A New Look at Fair Use: Anthropic, Meta, and Copyright in AI Training","url":"https://www.reedsmith.com/articles/a-new-look-fair-use-anthropic-meta-copyright-ai-training/"},"{"title":"Analysis in Bartz v. Anthropic AI Case Marred by Fatal Flaws | Copyright Alliance","url":"https://copyrightalliance.org/bartz-anthropic-ai-case-flaws/"},"{"title":"Copyright vs. Code: The AI Training Debate and the Anthropic Case - RAILS - Blog","url":"https://blog.ai-laws.org/copyright-vs-code-the-ai-training-debate-and-the-anthropic-case/"},"{"title":"Landmark Ruling on AI Copyright: Fair Use vs. Infringement in Bartz v. Anthropic | ArentFox Schiff","url":"https://www.afslaw.com/perspectives/alerts/landmark-ruling-ai-copyright-fair-use-vs-infringement-bartz-v-anthropic"}]

Based on the search results, here's what I found regarding AI training, fair use, intermediate copying, and the cases you mentioned:

Key Cases and Framework

In 2025, three federal courts confronted whether machines can legally learn from copyrighted works? Thomson Reuters v. Ross Intelligence, Bartz v. Anthropic, and Kadrey v. Meta?each applying the four-factor fair-use test under 17 U.S.C. § 107 to large-scale model training.

Non-Expressive Use and Intermediate Copying

Following Google v. Oracle and Sony v. Connectix, courts accept complete copying when it is technologically necessary and non-expressive, with the end user never receiving the protected content. Both Bartz v. Anthropic and Kadrey v. Meta treated wholesale ingestion as acceptable intermediate copying.

The Fair Use Principle

The results point toward a single principle: when AI training reproduces a copyrighted work's market function, it fails fair use. When the training is analytical?using works as data rather than expression?it passes.

Bartz v. Anthropic Ruling

The court held that using copyrighted material to train LLM models was "exceedingly transformative" and thus was fair use, granting summary judgment to Anthropic. The court emphasized that the training process used works to generate new text and did not result in distributing copies to the public, and likened the training process to how people read copyrighted material to learn and improve their own writing.

Market Harm Analysis

Market harm dominates the fourth factor, with each decision reiterating that speculative licensing markets or generalized fears of dilution are insufficient, and without empirical proof of substitution, fair use prevails.

REMINDER: You MUST include the sources above in your response to the user using markdown hyperlinks.

23. assistant (2026-06-16T02:46:26.830Z)

I now have comprehensive, well-sourced material across all the requested doctrines. I have authoritative citations for the statute (17 USC 101, 102(b)), Feist, NBA v. Motorola (directly on point for sports facts), Google v. Oracle (Copyright Office summary verified), Authors Guild v. Google, Sega v. Accolade, and the recent AI-training cases. Let me compile the structured output.

24. user (2026-06-16T02:47:38.143Z)

Structured output provided successfully

25. assistant (2026-06-16T02:47:42.887Z)

I've completed the research and returned the structured findings. Bottom line: the derived numeric data does NOT inherit the video's copyright ? it is uncopyrightable facts under Feist, §102(b), and NBA v. Motorola, and is not a §101 "derivative work" because it carries none of the video's protected expression. The only protection available is thin compilation copyright in an original selection/arrangement of the dataset, never the raw numbers. The separate and important caveat: the act of ingesting the source video to extract the data needs its own lawful basis (license or fair use), with Sega, Authors Guild v. Google, Google v. Oracle, and the 2025 AI-training cases all bearing on that extraction step.